

**UNITED STATES DISTRICT COURT
DISTRICT OF MINNESOTA**

Joseph Kirchner,

Case No. 26-CV-2594 (LMP/DJF)

Plaintiff,

vs.

**REPLY MEMORANDUM OF LAW
IN SUPPORT OF DEFENDANT’S
MOTION TO DISMISS**

Keith Ellison,

Defendant.

INTRODUCTION

The Court should grant Defendant Attorney General Keith Ellison’s (“AG Ellison”) motion to dismiss. Kirchner’s responsive memorandum has failed to address Defendant’s arguments for dismissal. This case can and should be resolved on preclusion grounds. If the Court goes further, the claims against AG Ellison should be dismissed because Kirchner lacks Article III standing, sovereign immunity applies, and the Complaint otherwise fails to state a claim.

ARGUMENT

I. DISMISSAL ON PRECLUSION GROUNDS IS WARRANTED.

In dismissing Kirchner’s first complaint, Chief Judge Schlitz wrote, “Kirchner obviously lacks standing to seek virtually all of the relief he requests ... the Court does not have the power to simply make declarations about broad legal precepts absent an Article III case or controversy...” (*Kirchner v. Ellison*, 26-cv-00723, (D. Minn. 2026), Doc. 29, p. 2). Kirchner now asserts that this order did not address his standing and therefore does not

carry a preclusive effect. (Doc. 15 p. 10). Kirchner’s argument rests on the assumption that because the *Kirchner I* order “reached no count, no statutory provision, and no element of standing” it does not constitute an adjudication of the merits. But there is no requirement that a Court do any of those things to issue a dismissal order. Kirchner wants this Court to find that his near identical pleadings establish standing when approximately four months later they did not.¹ This is especially true when a complaint is as facially deficient as Kirchners and his lack of standing is “obvious.” (26-cv-00723, Doc. 29, p. 2).

Instead, Kirchner insists that *Kirchner I* was dismissed because the complaint violated Rule 8(a)(2) and therefore constitutes a dismissal without prejudice. (Doc. 15, p. 10). But as he concedes, repeated violations of Rule 8 justify a dismissal with prejudice. *Michaelis v. Nebraska State Bar Ass’n*, 717 F.2d 437, 439 (8th Cir. 1983). Kirchner repeatedly violated by first filing a 105-page complaint with 150 pages of attached exhibits and then a 120-page amended complaint with 500 pages of attachments. (26-cv-00723, Doc. 29, pp. 1-2). Kirchner appears to argue that *Michaelis* announced a rule requiring judges to warn litigants of repeated Rule 8 violations before issuing dismissal orders with prejudice. (Doc. 15, p. 10). But that is not so. The *Kirchner I* court properly determined that Kirchner was on notice that his complaint violated Rule 8 because of Defendants motion to dismiss, and Kirchner responded by “submitting a pleading that even more egregiously violates Rule 8(a)(2). (26-cv-00723, Doc. 29, pp. 3). Because Kirchner

¹ While this motion is pending, the Eighth Circuit summarily affirmed the *Kirchner I* dismissal order and issued a mandate. *See Joseph Kirchner v. Keith M. Ellison*, No. 26-1615, (8th Cir. July 16, 2026).

repeatedly violated Rule 8(a)(2) in *Kirchner I*, the Court should find that the matter was dismissed with prejudice and likewise dismiss this matter.

II. KIRCHNER LACKS STANDING.

Kirchner has failed to establish standing to bring his claims because he has failed to establish an injury in fact and because the nature of his claims is not redressable by this Court.

A. No Injury In Fact.

Kirchner has not established that he suffered a cognizable injury in fact. Kirchner's central argument is that the AG Ellison has broad criminal investigatory and criminal powers and the February 26 letter chills his right to petition the government because it incorrectly disavows those powers. In its principal brief, the AG Ellison argued that the February 26 letter did not contain a misstatement of law because the PCFA is civil. Doc. 11, p. 8. In response, Kirchner makes three arguments: 1) his criminal referral was not limited to the PCFA, 2) the PCFA contains criminal provisions, 3) and the February 26 letter disavowed the Attorney General's investigatory powers, which are mandatory under Minn. Stat. § 8.31. Each argument is addressed in turn.

First, even if Kirchner's referral concerned laws other than the PCFA, he still has not pointed to any legal authority that the AG Ellison has broad criminal investigatory powers. Kirchner pleads that criminal authority flows from the Attorney General to county attorneys but tellingly provides no actual legal authority for this assertion. Doc. 1, ¶¶ 24, 39. In the Complaint, Kirchner cites to Minn. Stat. § 8.06 for the proposition that the Attorney General holds supervisory authority over county attorneys writing that county

attorneys act “under the direction of the attorney general” and shall “aid and assist in the prosecution.” Doc. 1, ¶ 39; Doc 15, p. 20. But the cited words do not appear in the statute. Minn. Stat. § 8.06 establishes the requirement that the Attorney General serve as counsel for *state* officers, boards, and commissions and that the Attorney General can request that a county attorney appear on behalf of those state officers, boards, and commissions. The statute says nothing about the Attorney General’s criminal investigatory or prosecutorial powers, nor does it state that county attorneys act under the direction of the Attorney General. The words that Kirchner provided to the Court in quotations (“under the direction” and “aid and assist in the prosecution”) do not appear anywhere in Minn. Stat. § 8.06. Indeed, Minnesota county attorneys are not agents of the State and are not subject to state control in the exercise of their duties. *Mille Lacs Band of Ojibwe v. Cnty. of Mille Lacs*, Minnesota, 508 F. Supp. 3d 486, 512 (D. Minn. 2020).

Second, Kirchner argues that the PCFA contains criminal penalties and neither party disputes the AG Ellison’s authority to investigate violations of the PCFA. It is true that Minn. Stat. § 325F.69, subd. 6 establishes a gross misdemeanor penalty. But the criminal penalty flows from civil liability under the statute. It does not render the statute criminal in nature, nor does it establish an equivalence between the Attorney General’s civil investigatory powers and a county attorney’s general criminal investigatory power. And Minnesota law makes it clear that the investigation and prosecution of gross misdemeanors and other criminal violations is a duty of county attorneys. *See* Minn. Stat. § 388.051, subd. 1(3).

Third and final, Kirchner argues that § 8.31, subd. 2 establishes the Attorney General's mandatory duty to investigate violations of the PCFA and takes steps to cause the arrest and prosecution of violators. But again, this statute does not create the type of broad criminal authority that Kirchner claims it does. It simply states that the Attorney General must investigate violations of the PCFA and has the discretion to "take such steps as are necessary to cause the arrest and prosecution..." of violators. Minn. Stat. § 8.31, subd. 2. At most, this section says that the Attorney General must take some unidentified action to cause a criminal prosecution. But the language "to cause" implies that another party, other than the Attorney General, would carry out the arrest and prosecution. Otherwise, the statute would read, "the Attorney General shall arrest and prosecute" violators. The subdivision's later references to civil actions also implies that the duties proscribed are related to the Attorney General's civil powers, "The discovery may be obtained without commencement of a civil action." *Id.* The Court should reject Kirchner's attempts to create broad criminal powers for the Attorney General out of this statute.

In sum, Kirchner does not have standing because the alleged injury is based on conjecture and is not concrete. The February 26 letter contains no misstatement of law and therefore he cannot establish any injury flowing from that letter.

B. Redressability

Another independent reason why Kirchner lacks standing is his injuries are not redressable by a favorable decision by the Court. In his response, Kirchner argues that he has met the redressability requirement of standing because if the Court agrees with him, the Attorney General will be forced to investigate his criminal referral petition on its own

merits. Assuming he is correct and the Attorney General's website and the February 26 letter do misstate the law, his injury is nonetheless not redressable. The Attorney General's powers to investigate violations of the law are discretionary. This Court cannot force the AG Ellison to conduct any investigation or charging decision. Kirchner argues that *Heckler v. Chaney*, 470 U.S. 821, 832-33 & n. 4 (1985) establishes that a refusal by an agency to initiate proceedings related to its statutory duties is judicially reviewable.² (Doc. 15, p. 21) But that is the opposite of *Heckler's* holding. In *Heckler*, The Supreme Court found that there was no judicially manageable standard for reviewing an agency's discretion and that an agency's decision to not institute proceedings was unreviewable. *Id.* at 837-38. Similarly, the Court would be unable to review the Attorney General's decision in whether to investigate Kirchner's claims because such a decision would be inherently discretionary. *Id.* at 831-32.

It is strange that Kirchner would invoke *Heckler* at all. The Supreme Court further emphasized that claims based on an agency's refusal to act are generally unsuitable for judicial review because "when an agency refuses to act it generally does not exercise its coercive power over an individual's liberty or property rights, and thus does not infringe upon areas that courts often are called upon to protect." *Id.* at 832. Likewise, Kirchner's case rests upon the assumption that the AG Ellison's refusal to exercise a supposed statutory duty somehow injures him. These types of cases are inherently unsuitable for judicial review.

² In a somewhat contradictory manner, Kirchner implicitly concedes that the decision to investigate his claims would be protected by prosecutorial immunity. Doc. 1, ¶ 96.

III. THE EX PARTE YOUNG EXCEPTION DOES NOT APPLY.

Kirchner alleges that he is properly seeking prospective declaratory and injunctive relief under the *Ex Parte Young* because the Attorney General's website contains a false statement of law constituting an ongoing violation of his constitutional rights.

The basis of Kirchner's requested relief is that he wants a reevaluation of his criminal referral letter, necessarily premised on the assumption that the AG Ellison's past decision was wrong. This is properly understood as a retrospective claim for relief. And the nature of that relief requires the Court to make decisions about state law and whether the AG Ellison's actions conformed to that state law. This type of relief is foreclosed by *Pennhurst State School & Hospital v. Halderman*, 465 U.S. 89, 106 (1984). While Kirchner may style his complaint as a federal § 1983 claim, the nature of his claims is inherently related to the question of whether the AG Ellison's actions violated state law. This is not proper grounds to invoke *Ex Parte Young*'s narrow exception. "[W]hen a plaintiff alleges that a state official has violated *state* law . . . the entire basis for the doctrine of *Young* . . . disappears." *Id.* at 106 (emphasis in original). Moreover, Kirchner's claims are premised on an alleged violation of state law, not federal law, which is at odds with his requested relief under § 1983. *Stevenson v. Blytheville Sch. Dist. #5*, 800 F.3d 955, 965 (8th Cir. 2015)

IV. KIRCHNER FAILS TO STATE A CLAIM FOR WHICH CLAIM RELIEF MAY BE GRANTED.

Kirchner's response memorandum provides no basis to avoid dismissal on the grounds that he has failed to state a claim under Fed. R. Civ. P. 12. Accordingly, the Court should dismiss the Complaint.

A. Kirchner Has Not Pleaded A First Amendment Violation.

As an initial matter, Kirchner appears to concede that he has not pleaded a First Amendment retaliation claim, reframing Count I as a Petition Clause and "chill theory"³ claim. Doc. 19, p. 30. To the extent that Count I persists as a retaliation claim, Kirchner has forfeited opposition and that claim should be dismissed. *Taaffe v. Am. Fed'n of Gov't Emps., Loc. 1969*, No. 23-CV-2037 (WMW/TNL), 2024 WL 363754, at *3 (D. Minn. Jan. 31, 2024) (citing *Demien Constr. v. O'Fallon Fire Protection*, 812 F.3d 654, 657 (8th Cir. 2016)).

Regardless, Kirchner has not sufficiently pleaded a Petition Clause claim. He only alleges that the alleged criminal activity in his petition is unredressed and that his speech is chilled by AG Ellison's alleged misstatement of law. First, whether or not the alleged criminal activity is redressed is irrelevant to his Petition Clause claim. Second, Kirchner has not provided anything other than a conclusory statement that his speech was chilled and that he was redirected to an unhelpful government agency.⁴ Doc. 19, p. 30. There is no allegation that the Attorney General's Office told Kirchner that he could not contact them

³ It is not clear if Kirchner intends these to be independent theories of relief or that his right to petition is chilled.

⁴ Whether or not the FBI will take Kirchner's phone calls is similarly irrelevant.

again or that he is in barred from communicating with the Office. Accordingly, his petition clause claim fails.

B. Kirchner Has Failed To Plead An Equal Protection Claim

A “class-of-one” plaintiff must “provide a specific and detailed account of the nature of the preferred treatment of the favored class.” *Jennings v. City of Stillwater*, 383 F.3d 1199, 1214 (10th Cir. 2004). Kirchner persists in comparing himself to the Feeding Our Future defendants to an unclear end. There is no allegation that those individuals engaged in similar conduct as Kirchner and the Complaint does not establish that the Feeding Our Future defendants are similarly situated in all relevant aspects. *Flowers v. City of Minneapolis, Minn.*, 558 F.3d 794, 798 (8th Cir. 2009) At most, Kirchner appears to be alleging that AG Ellison met with the Feeding Our Future defendants and did not meet with him. This allegation is wholly inadequate to establish that he is similarly situated to those individuals.

CONCLUSION

For the above reasons and those set forth in Defendants’ initial memorandum of law, Defendants respectfully request that the Court grant their motion to dismiss. The Court should dismiss all counts with prejudice.

Dated: July 23, 2026

Respectfully submitted,

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